

12. Leave Rules

[Swamy's — FR & SR, Part - III]

1. General Principles

1. Leave cannot be claimed as a matter of right. — Rule 7 (1).

2. The leave sanctioning authority may refuse or revoke leave of any kind, but cannot alter the kind of leave due and applied for. — Rule 7 (2).

Earned Leave should not ordinarily be denied during the last ten years of service. — GID (2), Rule 7.

3. Leave of one kind taken earlier may be converted into leave of a different kind at a later date at the request of the official and at the discretion of the authority who granted the leave. For example, extraordinary leave may be retrospectively converted into leave not due and earned leave into half pay leave or earned leave on MC into commuted leave, as the case may be. The Government servant should apply for such conversion within thirty days of completion of the relevant spell of leave. This, however, cannot be claimed as a matter of right by the official.

— Rule 10 (1) and Proviso.

4. Conversion of one kind of leave into leave of a different kind is permissible only when applied for by the official while in service and not after quitting service. — GID below Rule 10.

5. Leave sanctioning authority may commute retrospectively periods of absence without leave into Extraordinary leave. — Rule 32 (6).

6. No leave of any kind can be granted for a continuous period exceeding five years except with the sanction of the President. Without a valid reason, a Government servant who remains absent for continuous period exceeding five years other than foreign service, with or without leave, should be deemed to have resigned from Government service. — Rule 12.

7. An official on leave should not take up any service or employment elsewhere without obtaining prior sanction of the Competent Authority. — Rule 13.

8. *Grant of Leave on Medical grounds.* — Government servant (Gazetted or non-Gazetted) — (1) who is a CGHS beneficiary and residing within

the limits of CGHS at the time of illness should produce medical certificate/fitness certificate from a CGHS doctor.

(2) In respect of Government servant who has opted out of CGHS facilities and availing the medical facilities provided by his/her spouse's employer, the medical certificate for availing the commuted leave issued by the hospitals/medical practitioners approved by that employer is allowed.

— GID (4), Rule 19.

(3) Who is not a CGHS beneficiary and CGHS beneficiaries who proceed outside the Headquarter on duty, leave, etc., should produce the certificate from AMA, and in such cases, a non-Gazetted Government servant may produce certificate from RMP if there is no AMA available within a radius of 8 kms of his residence.

— Rule 19 (1).

(4) Where a non-Gazetted Government servant finds it difficult to obtain MC/FC from CGHS/AMA, the leave sanctioning authority may consider grant of leave on the basis of the certificate from a RMP after taking into account the circumstances of the case.

(5) In the case of hospitalization/indoor treatment permitted in a private hospital recognized under the CGHS/CS (MA) Rules, a Government servant (Gazetted or non-Gazetted) may produce MC/FC from the authorized Doctor in such a hospital in case his hospitalization/indoor treatment is on account of the particular kind of disease (e.g., heart, cancer, etc.) for the treatment of which the concerned Hospital has been recognized. This relaxation is not admissible in case of any day-to-day/outdoor treatment or indoor treatment in respect of any other disease.

— Rule 19 (1).

9. Leave sanctioning authority may secure second medical opinion, if considered necessary.

— Rule 19 (3).

10. A Government servant who is on leave on medical certificate will be permitted to return to duty only on production of a medical certificate of fitness from the AMA/CGHS Doctor/Registered Medical Practitioner, as the case may be.

— Rule 24 (3) and Rule 19.

11. Overstayal of leave without proper sanction, will be debited against the HPL account of the Government servant to the extent HPL is due and the excess treated as EOL. No leave salary is admissible for the entire period of overstayal and the period of such overstayal will not count for increment, leave and pension.

— Rule 25 (1) and Audit Instruction.

12. Wilful absence from duty after the expiry of leave renders a Government servant liable to disciplinary action.

— Rule 25 (2).

13. Absence without leave not in continuation of any authorized leave will constitute an interruption of service unless it is regularized.

— Audit Instruction under Rule 25 (1).

14. *Permanently incapacitated Government servants not to be invalidated.*— A Government servant who has been permanently incapacitated from Government service on account of mental or physical disability shall not be invalidated or reduced in rank. If he is not suitable for the present post, he could be shifted to some other post with the same pay scale and service benefits. If not possible to adjust, he may be kept on a supernumerary post until a post becomes available or his superannuation, whichever is earlier. No promotion shall be denied. — GID (1), Rule 20 (2).

Leave applied on MC due to disability should not be refused/revoked without reference to a Medical Authority. The ceiling on maximum leave under Rule 12 will not be applied. Any leave debited after Government servant is incapacitated shall be remitted back. Family member may submit leave application/medical certificate, if Government servant is unable to submit the same.

The Certificate of Disability is required to be issued in Form 3-A which should be signed by a Government doctor of a Government medical board. Further, a Government servant who is granted leave in accordance with the provisions of Clause (b) of sub-rule (1) of Rule 20, the provisions of Section 20 of the Rights of Persons with Disabilities Act, 2016 (49 of 2016) shall, suo motu apply. — GID (2), Rule 20.

15. *Transfer to foreign service.*— If a Government servant is transferred to foreign service while on leave, he ceases, from the date of such transfer, to be on leave and to draw leave salary. — GID, Rule 21.

2. Earned Leave

1. *Credit.*— Credit will be afforded in advance at a uniform rate of 15 days on the 1st of January and 1st of July every year. The credit to be afforded will be reduced by $\frac{1}{10}$ th of extraordinary leave availed and/or period of *dies non* during the previous half-year, subject to a maximum of 15 days and to the extent of such credit only. — GID (2), Rules 26 (1) and 27 (3).

2. *Accumulation.*— Earned leave can be accumulated up to 300 days in addition to the number of days for which encashment has been allowed along with LTC.

3. While limiting the maximum of 300 days, where the balance at credit is 286-300 days, further advance credit of 15 days on 1st January/1st July will be kept separately and set-off against the EL availed of during that half-year ending 30th June/31st December. However, if the leave availed is less than 15 days, the remainder will be credited to the leave account subject to the ceiling of 300 days at the close of that half-year. — GID (2), Rule 26.

4. The credit for the half-year in which a Government servant is appointed will be afforded at the rate of $2\frac{1}{2}$ days for each completed

calendar month of service which he is likely to render in the calendar half-year in which he is appointed. — Rule 27 (1).

5. The credit for the half-year in which a Government servant is due to retire or resigns from the service will be afforded at the rate of $2\frac{1}{2}$ days for each completed calendar month in that half-year up to the date of retirement / resignation. — Rule 27 (2) (a).

6. The credit for the half-year in which a Government servant is removed/ dismissed from service will be afforded at the rate of $2\frac{1}{2}$ days per completed calendar month up to the end of the calendar month preceding the calendar month in which he is removed/dismissed. In the case of death of a Government servant while in service, credit will be afforded at the rate of $2\frac{1}{2}$ days per completed calendar month up to the date of death.

— Rule 27 (2) (b) and (c).

7. If a Government servant retires/resigns/is removed/is dismissed/ dies in the middle of a calendar year, the earned leave credited should be reduced at the rate of $\frac{1}{10}$ th of any extraordinary leave taken in that half-year and the leave account regularized. — GID (1), Rule 27.

8. While affording credit, fractions of a day should be rounded off to the nearest day, e.g. $7\frac{1}{2}$ days to be rounded as 8 days. — Rule 27 (4).

9. *E.L. on account of Unavailed Joining Time.*— Unavailed joined time, i.e., the number of days admissible (subject to a maximum of 15 days) reduced by the actual number of days availed, shall be credited to the earned leave account subject to the following conditions:—

- (a) The Government servant is ordered to join the new post without availing full admissible joining time; or

He proceeds alone to the new place and joins the post without availing full joining time and takes his family later within the permissible time for claiming travelling allowance for the family.

— Rule 26.

- (b) The credit of earned leave *plus* the unavailed joining time credited should not exceed 300 days (in addition to the number of days for which encashment has been allowed along with LTC).

— Rule 26 (1) (a) (ii) and proviso thereunder.

- (c) The concession of showing advance credit separately in the leave account is not applicable. — GID (3), Rule 26.

10. One day joining time admissible for transfer within the same station, if not availed, cannot be credited to the EL Account.— Appendix 10, GIO (5)

11. Earned leave can be availed up to 180 days at a time. — Rule 26 (2).

EXCEPTION:

- (a) Earned leave exceeding 180 days but not exceeding 300 days at a time may be granted to Group 'A' and Group 'B' Officers, if at least the quantum of leave in excess of 180 days is spent outside India, Bangladesh, Bhutan, Burma, Sri Lanka, Nepal and Pakistan.
— Rule 26 (3).
- (b) Earned leave may be taken at a time up to 300 days as leave preparatory to retirement.
— Rule 38 (1).

3. Half Pay Leave

1. Up to 31-12-1985.— Calculated at 20 days for each completed year of service. Service includes periods of duty and leave including extraordinary leave with or without MC, but does not include periods of suspension treated as *dies non*, overstays of leave/joining time unless otherwise regularized.

2. From 1-1-1986, half pay leave is credited in advance at the rate of 10 days on the 1st of January and 1st of July every year. The advance credit for the half-year in which a Government servant is appointed will be at the rate of $\frac{5}{3}$ days for each completed calendar month of service he is likely to render in the half-year in which he is appointed.

3. The half pay leave to be credited every half-year will be reduced at the rate of one-eighteenth of the period of *dies non*/suspension treated as *dies non*, during the preceding half-year, subject to a maximum of ten days.

4. The credit for the half-year in which a Government servant is due to retire/resigns will be afforded at the rate of $\frac{5}{3}$ days for each completed calendar month of service in that half-year up to the date of retirement/resignation.

5. The credit for the half-year in which a Government servant is removed/dismissed from service will be afforded at the rate of $\frac{5}{3}$ days per completed calendar month up to the end of the calendar month preceding the last calendar month of service. In the case of death of a Government servant while in service, credit will be afforded at the rate of $\frac{5}{3}$ days per completed calendar month up to the date of death.
— Rule 29 (2) (c) and (ca).

6. Half pay leave can be availed either with or without medical certificate.
— Rule 29 (4).

7. The grant of half pay leave to a temporary official is subject to the sanctioning authority satisfying himself that the official will return to duty after its expiry. This condition is not applicable where such official is declared completely and permanently incapacitated for further service.
— Proviso to Rule 29.

8. While affording credit, fraction shall be rounded off to the nearest day. — Rule 29 (5).

4. Commuted Leave

1. Commuted leave not exceeding half the amount of half pay leave due can be taken on medical certificate. — Rule 30 (1).

2. Commuted leave can be taken without medical certificate—

- (a) up to a maximum of 90 days in the entire service if utilized for an approved course of study certified to be in public interest. — Rule 30 (1-A).

- (b) up to a maximum of 60 days by a female Government servant if it is in continuation of maternity leave. — Rule 43 (4).

- (c) up to a maximum of 60 days by a female Government servant with less than two living children if she adopts a child less than one year old. — Rule 43-B.

3. Commuted leave can be granted only when the leave sanctioning authority is satisfied that there is a reasonable prospect of the Government servant returning to duty on its expiry. So it cannot be granted as leave preparatory to retirement. — Rule 30 (1) (a).

4. If commuted leave is taken, twice the number of days availed should be debited in the half pay leave account. — Rule 30 (1) (d).

5. Where a Government servant granted commuted leave quits service voluntarily without returning to duty, the commuted leave shall be treated as half pay leave and the excess leave salary recovered. If the retirement is by reason of ill-health incapacitating him for further service or in the event of death, recovery should not be made. — Rule 30 (2).

6. Commuted leave may be granted at the request of the Government servant even when earned leave is available. — Note below Rule 30.

7. Commuted Leave on medical grounds may be allowed to a Government servant who has opted out of CGHS, on the basis of certificates issued by Hospitals/Medical Practitioners approved by the employer of the spouse. — GID (5), Rule 30.

5. Leave Not Due

1. Leave Not Due may be granted to a permanent Government servant with no half pay leave at credit.

2. Temporary officials with minimum of one year's service and suffering from TB, Leprosy, Cancer or Mental illness may also be granted LND if the post from which the official proceeds on leave is likely to last till his return.

3. It is granted on medical certificate (Exception : 4 below) if the leave sanctioning authority is satisfied that there is a reasonable prospect of the Government servant returning to duty on its expiry. — Rule 31 (1).

4. It may be granted without medical certificate—

(a) in continuation of maternity leave. — Rule 43 (4).

(b) to a female Government servant with less than two living children on adoption of a child less than a year old. — Rule 43-B.

5. The amount of leave should be limited to the half pay leave that the Government servant is likely to earn subsequently. — Rule 31 (1) (b).

6. LND during the entire service is limited to a maximum of 360 days. — Rule 31 (1).

7. LND will be debited against the half pay leave that the Government servant earns subsequently. — Rule 31 (1) (c).

8. It cannot be granted in the case of 'Leave Preparatory to Retirement'. — Rule 31 (1).

9. When a Government servant granted leave not due resigns from service or is permitted to retire voluntarily without returning to duty, the leave not due should be cancelled. The resignation or retirement will take effect from the date on which such leave had commenced and the leave salary should be recovered. — Rule 31 (2) (a).

10. Where a Government servant, who having availed himself of Leave Not Due, returns to duty but resigns or retires from service before he has earned such leave, he shall be liable to refund the leave salary to the extent the leave has not been earned subsequently. — Rule 31 (2) (b).

11. In cases of 9 and 10 above, leave salary will not be recovered if the retirement is due to ill-health, incapacitating the Government servant for further service or in the event of death or is retired prematurely under FR 56 (j) or FR 56 (l) or Rule 48 (1) (b), CCS (Pension) Rules. — Proviso to Rule 31 (2).

12. It can be granted to an officer whose leave account shows a debit balance in consequence of the grant of LND on a previous occasion. — A.G.'s Decision under Rule 31.

6. Extraordinary Leave

Extraordinary leave is granted to a Government servant—

(a) when no other leave is admissible;

(b) when other leave is admissible, but the Government servant applies in writing for extraordinary leave. — Rule 32 (1).

Extraordinary leave cannot be availed concurrently during the notice period, when going on voluntary retirement. — GID (2), Rule 32.

Limit.— 1. No leave of any kind can be granted to a Government servant for a continuous period exceeding five years. Subject to this limitation, any amount of EOL may be sanctioned to a permanent Government servant.

— Rule 12.

2. For temporary officials, the limit on any one occasion is—

(a) *All Officials.*— Up to 3 months with or without medical certificate. — Rule 32 (2) (a).

(b) *Officials with a minimum of one year continuous service.*— Up to 6 months with medical certificate for common ailments. — Rule 32 (2) (b).

Up to 18 months with medical certificate for cancer, mental illness, pulmonary tuberculosis or pleurisy of tubercular origin, tuberculosis of any part of the body and leprosy. — Rule 32 (2) (d).

(c) *Officials with three or more years' continuous service.*— Up to 24 months, where the leave is required for the purpose of prosecuting studies certified to be in public interest. — Rule 32 (2) (e).

(d) *Officials belonging to Scheduled Castes/Scheduled Tribes.*— Heads of Departments may grant leave exceeding three months for attending the pre-examination training course at the centres notified by the Government from time to time. — Rule 32 (4).

3. Two spells of extraordinary leave, intervened by any other kind of leave, should be treated as one continuous spell for the purpose of applying the maximum limit. — Rule 32 (5).

4. EOL may also be granted to regularize periods of absence without leave retrospectively. — Rule 32 (6).

7. Leave Entitlements for Vacation Department Staff

1. The leave account of employees serving in a Vacation Department (other than a military officer) shall be credited with earned leave, in advance in two instalments of five days each on the first day of January and July of every calendar year.

2. If, in any year, he avails a portion of the vacation, he shall be entitled to additional earned leave in such proportion of twenty days, as the number of days of vacation not taken bears to the full vacation, provided the total earned leave credited shall not exceed thirty days in a calendar year.

3. If, in any year, the Government servant does not avail any vacation, earned leave will be as per Rule 26.

4. 'Year' means twelve months of actual duty and not 'calendar year'.

5. The non-availing of vacation should be due to general or a special order of a higher authority asking him to forgo the vacation. If he is prevented by such an order from enjoying more than 15 days of the vacation, he shall be considered to have availed of no portion of the vacation.

6. Employees serving in a Vacation Department are not entitled to Half Pay Leave. — Rule 28 and GID (10).

7. Vacation can be combined with any kind of leave; but the duration of vacation and earned leave combined should not exceed the amount of EL due and admissible. — Proviso to Rule 28 (2).

8. Vacation can be combined with casual leave. — GID (3), Rule 28.

9. The facility of crediting unavailed portion of joining time under Rule 26 (1) (a) (ii) is also admissible to persons serving in Vacation Departments. — Note below Rule 28 (3).

10. *Benefit of leave to teachers in Vacation Departments.*— Persons serving in Vacation Departments (including Teachers) have been extended the benefit of leave under the provisions of Rule 28 of Leave Rules, for the duration in which such staff have been utilized for school works/activities during vacations. — GID (9), Rule 28.

8. Maternity Leave

1. Admissible to married/unmarried female employees during—

(a) *Pregnancy*: 180 days from 1-9-2008.— Admissible only to employees with less than two surviving children. — Rule 43 (1).

(b) *Miscarriage/Abortion (induced or otherwise)*: Total of 45 days in the entire service excluding any such leave taken prior to 16-6-1994. Admissible irrespective of number of surviving children. Application should be supported by a certificate from a Registered Medical Practitioner for NGOs and from AMA for GOs. — Rule 43 (3).

2. The leave is not debited to the leave account. — Rule 43 (5).

3. It is granted on full pay. — Rule 43 (2).

4. It may be combined with leave of any other kind. — Rule 43 (4).

5. Any leave (including commuted leave up to 60 days and leave not due) may be taken without medical certificate up to two years in continuation. — Rule 43 (4) (b).

6. Counts as service for increments. — FR 26 (b).

7. Counts as service for pension. — Rule 21 of CCS (Pension) Rules.

8. In the case of officials to whom the provisions of Employees' State Insurance Act apply, the leave salary will be reduced by the benefit admissible under the Act for the corresponding period.

— Note below Rule 43 (2).

9. Not admissible for 'threatened abortion'. — GID (4), Rule 43.

10. Admissible for induced abortion. — GID (2), Rule 43.

9. Special Maternity Leave

A Special Maternity Leave is granted to a female Central Government servant in case of death of a child soon after birth / stillbirth.

Duration: 60 days from the date of expiry of child soon after birth / stillbirth.

In case Maternity Leave has already been availed and her leave continues till the date of expiry of child soon after birth / stillbirth, the maternity leave already availed till death of the child may be converted into any other kind of leave available in her leave account without insisting for a medical certificate and a Special Maternity Leave of 60 days may be granted from the date of expiry of child soon after birth / stillbirth.

In case the maternity leave has not been availed, 60 days of Special Maternity Leave may be granted.

The condition for death of a child soon after birth may be defined as up to 28 days after birth. A baby born with no signs of life at or after 28 weeks of gestation may be defined as stillbirth.

Eligibility: Admissible only to a female Central Government servant with less than 2 surviving children and for child delivery only in an authorized hospital.

"Authorized Hospital" is defined as Government Hospital or Private Hospital empanelled under Central Government Health Scheme (CGHS). In case of emergency delivery in non-empanelled private hospital, production of emergency certificate is mandatory.

— OM, dated 2-9-2022.

10. Paternity Leave

Eligibility: Male Government servant with less than two surviving children during the confinement of his wife for childbirth or on accepting a child in pre-adoption foster care or on valid adoption of a child below the age of one year. Apprentices are also eligible.

Duration: Fifteen days during wife's confinement, i.e., up to 15 days before, or up to six months from the date of delivery of the child and for 15 days within six months from the date of accepting the child in pre-adoption foster care or from the date of valid adoption of a child.

Leave Salary: Equal to last pay drawn.

Not to be debited to the leave account. May be combined with any other kind of leave except casual leave. In a case where the pre-adoption foster care is not followed by valid adoption, paternity leave availed shall be debited from any other kind of leave available.

Not to be refused normally.

To be applied up to fifteen days before or up to six months from date of delivery or from the date of valid adoption. If the leave is not availed of within this period, it should be treated as lapsed.

— Rules 43-A, 43-AA and Notfn., dated 15-5-2023.

Child includes a child taken as ward under the Guardians and Wards Act, 1890 subject to conditions.

— Rule 43-AA, Note 2.

11. Leave to female Government servant on adoption of child

1. Granted to a female employee, with fewer than two surviving children, on accepting a child in pre-adoption foster care or on valid adoption of a child below the age of one year, for a period of 180 days immediately after accepting the child in pre-adoption foster care or from the date of valid adoption. Child includes a child taken as ward under the Guardians and Wards Act, 1890 subject to conditions.

2. Leave salary will be equal to the pay drawn immediately before proceeding on leave.

3. This may be combined with leave of any other kind.

4. In continuation of Child Adoption Leave, leave of the kind due and admissible (including leave not due and commuted leave not exceeding 60 days without production of Medical Certificate) for a period up to one year reduced by the age of the adopted child on the date of legal adoption without taking into account the period of Child Adoption Leave.

5. Facility not admissible to the female employee already having two surviving children at the time of adoption.

6. Leave not debited against the leave account. If the pre-adoption foster care is not followed by valid adoption, leave already availed shall be debited from any other kind of leave available.

— Rule 43-B and Notfn., dated 15-5-2023.

12. Child Care Leave

Women employees and single male employees having minor children may be granted Child Care Leave by an authority competent to grant leave for a maximum period of 730 days during their entire service for taking care of up to two eldest surviving children, whether for rearing or to look after any of their needs like examination, sickness, etc.

Conditions for grant of Child Care Leave (CCL).—

- (i) CCL requires prior sanction.
- (ii) Child means a child below the age of eighteen years. In respect of a child with a minimum disability of forty per cent, it is permitted for an offspring of any age subject to submission of certificates.
- (iii) A single male Government servant means an unmarried or widower or divorcee Government servant.
- (iv) CCL shall not be granted for more than three spells in a calendar year; in case of a single female Government servant, the grant of leave shall be extended to six spells in a calendar year.
- (v) Not ordinarily to be granted during the probation period except during certain extreme situations where the leave sanctioning authority is satisfied about the need and a minimal leave is sanctioned.
- (vi) CCL may not be granted for a period less than five days at a time.
- (vii) Intervening holidays will count as CCL as in the case of EL.
- (viii) During the period of CCL, salary shall be paid one hundred per cent for the first 365 days, and at eighty per cent for the next 365 days.
- (ix) CCL may be combined with leave of any other kind. Leave of the kind due and admissible (including Commuted Leave not exceeding sixty days and Leave Not Due) may be allowed for the third year in continuation of CCL without production of MC.
- (x) CCL shall not be debited against the leave account.
- (xi) May be availed during LTC.
- (xii) An employee on CCL may be permitted to leave headquarters with prior approval of Competent Authority. Employee may also proceed on foreign travel with clearance from appropriate Competent Authorities in advance.
- (xiii) CCL is also admissible to civilian female industrial employees working in Defence establishment subject to conditions.

- (xiv) CCL is also admissible to civilian female industrial employees of the Central Government at par with the civilian female industrial employees of Defence establishment, with effect from 1-9-2008 subject to conditions.
— GIDs, Rule 43-C.

13. Work Related Illness and Injury Leave (WRIL)

Hospital Leave, Special Disability Leave and Sick Leave subsumed in a new Leave named Work Related Illness and Injury Leave (WRIL).

With effect from 11-12-2018, the authority competent to grant leave may grant Work Related Illness and Injury Leave (WRIL) to a Government servant (whether permanent or temporary), who suffers illness or injury that is attributable to or aggravated in the performance of her or his official duties or in consequence of her or his official position subject to the provisions contained in sub-rule (1) of Rule 19 of the rules.

1. Full pay and allowances will be granted to all employees during the entire period of hospitalization on account of WRIL.

2. Beyond hospitalization, WRIL will be governed as follows:—

Full pay and allowances for the 6 months immediately following hospitalization and Half Pay only for 12 months beyond that. The Half Pay period may be commuted to full pay with corresponding number of days of Half Pay Leave debited from the employee's leave account.

3. In the case of persons to whom the Workmen's Compensation Act, 1923 applies, the amount of leave salary payable under WRIL shall be reduced by the amount of compensation payable under the Act.

4. No Earned Leave or Half Pay Leave will be credited during the period that the employee is on WRIL.
— GIDs, Rule 44

14. Special Leave connected with inquiry on Sexual Harassment

- (i) Leave up to maximum of 90 days shall be granted to an aggrieved female Government servant, during the period of pendency of inquiry on the recommendations of the Internal Committee or Local Committee.
- (ii) The leave so granted, shall not be debited against the leave account.
— Rule 48.